

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1238

By: Humphrey

AS INTRODUCED

An Act relating to agriculture; directing the Oklahoma Department of Agriculture, Food and Forestry to not require livestock to have certain tags; directing the Department to plan compacts with other states to allow the sale of livestock without certain tags; providing for ratification compacts; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 2101 of Title 2, unless there is created a duplication in numbering, reads as follows:

A. The Oklahoma Department of Agriculture, Food and Forestry shall not require livestock to be tagged with radio frequency identification (RFID) devices for animal disease traceability as required by the United States Department of Agriculture pursuant to 9 C.F.R., Section 86.4.

B. The Department shall contact other livestock-regulating state agencies in beef-producing states to plan compacts between those states and Oklahoma which would allow the sale of livestock

1 without RFID tags with those states. Such proposed compacts shall
2 be provided to the Speaker of the Oklahoma House of Representatives
3 and the President Pro Tempore of the Oklahoma State Senate, who then
4 shall take appropriate actions to ratify the compacts.

5 SECTION 2. This act shall become effective November 1, 2025.

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